



Title: Instructional Materials
Code: IIA
Book: WJCC Policy Manual
Section I: Instruction

The State Board of Education has placed with local school boards the responsibility for the selection, approval, and use of instructional materials. Accordingly, the school board will review and approve guidelines and procedures for the selection and evaluation of instructional materials.

The procedures for selection and evaluation of instructional materials will involve professional staff, citizens, and when appropriate, students. These procedures will offer a thorough and efficient approach which ensures that appropriate instructional materials aligned to Virginia's Standards of Learning are selected, and provides an opportunity for the school board, professional staff, and community to participate and be informed on the selection and use of instructional materials.

Consistent with Va. Code § 1-240.1, the school board acknowledges each parent has a fundamental right to make decisions concerning the upbringing, education, and care of the parent's child.

~~The Williamsburg-James City County School Board ensures parental notification of any instructional material that includes sexually explicit content.~~

~~The Williamsburg-James City County School Board provides nonexplicit instructional material and related academic activities to any student whose parent requests that the student be provided with such instructional material and/or activities.~~

This policy establishes clear procedures for (i) the identification of instructional materials with sexually explicit content, (ii) parental notifications of any instructional materials with sexually explicit content, (iii) parental review of instructional materials with sexually explicit content, and (iv) the provision in a non-punitive manner of alternative instructional materials that do not include sexually explicit content for any student whose parent so requests.

The superintendent is responsible for creating, implementing, and periodically updating procedures for implementing this policy. Those procedures will include

- identifying instructional materials, including supplementary materials, with sexually explicit content;
- identifying, prior to the start of each school year, any instructional material that includes sexually explicit content that may be used during the upcoming school year;
- a process by which principals will provide written notice to parents at least 30 days prior to the use of any instructional materials with sexually explicit content, that (a) specifically identifies the instructional materials with sexually explicit content, (b) informs parents of their right to review such instructional materials, and (c) informs parents of their right to have their child use, upon request, in a non-punitive manner, alternative instructional materials that do not include sexually explicit content;

- a process by which parents may change their decision with respect to the use of alternative instructional materials by providing written notice;
- maintaining a current list of instructional materials with sexually explicit content by grade and subject matter on the division's website; and
- a process for online access for parental review of instructional materials that include sexually explicit content unless such review is not technically feasible or is prohibited by copyright protection. The process shall include provisions requiring schools to have instructional materials including sexually explicit content available for review by parents.

The procedures will include a process for citizens to request reconsideration of instructional materials.

For the purposes of this policy:

"Sexually explicit content" as defined by Va. Code 2.2-2827, means (a) any description of or (b) any picture, photograph, drawing, motion picture film, digital image or similar visual representation depicting sexual bestiality, a lewd exhibition of nudity, as defined by this policy, sexual excitement, sexual conduct or sadomasochistic abuse, as defined by this policy, coprophilia, urophilia, or fetishism. Instructional materials shall not be designated as sexually explicit solely on the sexual orientation of the characters therein. ~~shall have the same meaning as provided in subsection A of § 2.2-2827 of the Code of Virginia.~~

"Parent" or "parents" means any parent, guardian, legal custodian, or other person having control or charge of a child. ~~shall have the same meaning as provided in § 22.1-1 of the Code of Virginia.~~

"Instructional material" and "instructional materials" mean any content used by one or more students for an educational purpose in connection with WJCC Public Schools regardless of (a) its format, whether printed, representational, audiovisual, electronic, or digital (such as materials, social media content, and software applications accessible through the internet), or (b) the time, place and manner in which the content is used. Library materials are considered instructional materials when used (a) for completion of an assignment from WJCC Public Schools, or (b) as part of an academic or extracurricular education program conducted by WJCC Public Schools. They include any division, school, and/or classroom purchased or created assessments. They do not include standardized national or state assessments, such as ACT, SAT, NAEP (National Assessment of Educational Progress), AP (Advanced Placement) or SOL (Standards of Learning) exams.

Adopted:

10/23/80

Revised:

6/5/01, 8/16/22, 12/6/22

Legal References:

20 U.S.C. §1232h.

34 CFR Part 9

Code of Virginia, 1950, as amended, §§ 2.2-2827, 18.2-390, 22.1-1, 22.1-16.8, ~~22.1-253.13:7~~

8 VAC 20-720-160.

Cross References:

IGAH, Family Life Education

IIA-R, Instructional Materials Regulation

IIAA, Textbook Selection and Adoption
IIAA-R, Textbook Selection and Adoption Regulation
IIAB, Supplementary Materials Selection and Adoption
IIAB-R, Supplementary Materials Selection and Adoption Regulation
IIBD, School Libraries/Media Centers
IIBEA/GAB, Acceptable Computer System Use
INB, Teaching about Controversial Issues
KAB, Family Engagement
KLB, Public Complaints about the Curriculum or Instructional Materials
KLB-R, Public Complaints About the Curriculum or Instructional Materials Regulation
KLB-E, Public Complaints about the Curriculum or Instructional Materials, Citizen's Request for
Reconsideration of Instructional Materials

Additional Resources

[IGAH - Family Life Education](#)
[IIA-R - Instructional Materials Regulation](#)
[IIAA - Textbook Selection and Adoption](#)
[IIAA-R - Textbook Selection and Adoption Regulation](#)
[IIAB - Supplementary Materials Selection and Adoption](#)
[IIAB-R - Supplementary Materials Selection and Adoption Regulation](#)
[IIBD - School Libraries](#)
[IIBEA/GAB - Acceptable Technology System Use](#)
[INB - Teaching About Controversial Issues](#)
[KAB - Family Engagement](#)
[KLB - Public Complaints about the Curriculum or Instructional Materials](#)
[KLB-R - Public Complaints About the Curriculum or Instructional Materials Regulation](#)
[KLB-E - Public Complaints about the Curriculum or Instructional Materials, Citizen's Request for
Reconsideration of Instructional Materials](#)
[20 USC § 1232h: Protection of pupil rights](#)
[§ 2.2-2827. Restrictions on state employee access to information infrastructure.](#)
[§ 18.2-390. Definitions.](#)
[§ 22.1-1. \(For Expiration Date, see 2022 Acts cc. 549, 550, cl. 2\) Definitions.](#)
[§ 22.1-16.8. Instructional material; sexually explicit content; parental notification.](#)
[§ 22.1-253.13:7. Standard 7. School board policies.](#)
[8VAC20-720-160. Instructional materials.](#)



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Consistent with Va. Code § 1-240.1, the school board acknowledges each parent has a fundamental right to make decisions concerning the upbringing, education, and care of the parent's child.

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~~The Williamsburg-James City County School Board provides nonexplicit instructional material and related academic activities to any student whose parent requests that the student be provided with such instructional material and/or activities.~~

This policy establishes clear procedures for (i) the identification of instructional materials with sexually explicit content, (ii) parental notifications of any instructional materials with sexually explicit content, (iii) parental review of instructional materials with sexually explicit content, and (iv) the provision in a non-punitive manner of alternative instructional materials that do not include sexually explicit content for any student whose parent so requests.

The superintendent is responsible for creating, implementing, and periodically updating procedures for implementing this policy. Those procedures will include

- identifying instructional materials, including supplementary materials, with sexually explicit content;
- identifying, prior to the start of each school year, any instructional material that includes sexually explicit content that may be used during the upcoming school year;
- a process by which principals will provide written notice to parents at least 30 days prior to the use of any instructional materials with sexually explicit content, that (a) specifically identifies the instructional materials with sexually explicit content, (b) informs parents of their right to review such instructional materials, and (c) informs parents of their right to have their child use, upon request, in a non-punitive manner, alternative instructional materials that do not include sexually explicit content;

- a process by which parents may change their decision with respect to the use of alternative instructional materials by providing written notice;
- maintaining a current list of instructional materials with sexually explicit content by grade and subject matter on the division's website; and
- a process for online access for parental review of instructional materials that include sexually explicit content unless such review is not technically feasible or is prohibited by copyright protection. The process shall include provisions requiring schools to have instructional materials including sexually explicit content available for review by parents.

The procedures will include a process for citizens to request reconsideration of instructional materials.

For the purposes of this policy:

"Sexually explicit content" as defined by Va. Code 2.2-2827, means (a) any description of or (b) any picture, photograph, drawing, motion picture film, digital image or similar visual representation depicting sexual bestiality, a lewd exhibition of nudity, as defined by this policy, sexual excitement, sexual conduct or sadomasochistic abuse, as defined by this policy, coprophilia, urophilia, or fetishism. Instructional materials shall not be designated as sexually explicit solely on the sexual orientation of the characters therein. ~~shall have the same meaning as provided in subsection A of § 2.2-2827 of the Code of Virginia.~~

"Parent" or "parents" means any parent, guardian, legal custodian, or other person having control or charge of a child. ~~shall have the same meaning as provided in § 22.1-1 of the Code of Virginia.~~

"Instructional material" and "instructional materials" mean any content used by one or more students for an educational purpose in connection with WJCC Public Schools regardless of (a) its format, whether printed, representational, audiovisual, electronic, or digital (such as materials, social media content, and software applications accessible through the internet), or (b) the time, place and manner in which the content is used. Library materials are considered instructional materials when used (a) for completion of an assignment from WJCC Public Schools, or (b) as part of an academic or extracurricular education program conducted by WJCC Public Schools. They include any division, school, and/or classroom purchased or created assessments. They do not include standardized national or state assessments, such as ACT, SAT, NAEP (National Assessment of Educational Progress), AP (Advanced Placement) or SOL (Standards of Learning) exams.

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34 CFR Part 9

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8 VAC 20-720-160.

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IGAH, Family Life Education

IIA-R, Instructional Materials Regulation

97 IIAA, Textbook Selection and Adoption
98 IIAA-R, Textbook Selection and Adoption Regulation
99 IIAB, Supplementary Materials Selection and Adoption
100 IIAB-R, Supplementary Materials Selection and Adoption Regulation
101 IIBD, School Libraries/Media Centers
102 IIBEA/GAB, Acceptable Computer System Use
103 INB, Teaching about Controversial Issues
104 KAB, Family Engagement
105 KLB, Public Complaints about the Curriculum or Instructional Materials
106 KLB-R, Public Complaints About the Curriculum or Instructional Materials Regulation
107 KLB-E, Public Complaints about the Curriculum or Instructional Materials, Citizen's Request for
108 Reconsideration of Instructional Materials
109

110 **Additional Resources**

111 [IGAH - Family Life Education](#)
112 [IIA-R - Instructional Materials Regulation](#)
113 [IIAA - Textbook Selection and Adoption](#)
114 [IIAA-R - Textbook Selection and Adoption Regulation](#)
115 [IIAB - Supplementary Materials Selection and Adoption](#)
116 [IIAB-R - Supplementary Materials Selection and Adoption Regulation](#)
117 [IIBD - School Libraries](#)
118 [IIBEA/GAB - Acceptable Technology System Use](#)
119 [INB - Teaching About Controversial Issues](#)
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121 [KLB - Public Complaints about the Curriculum or Instructional Materials](#)
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124 [Reconsideration of Instructional Materials](#)
125 [20 USC § 1232h: Protection of pupil rights](#)
126 [§ 2.2-2827. Restrictions on state employee access to information infrastructure.](#)
127 [§ 18.2-390. Definitions.](#)
128 [§ 22.1-1. \(For Expiration Date, see 2022 Acts cc. 549, 550, cl. 2\) Definitions.](#)
129 [§ 22.1-16.8. Instructional material; sexually explicit content; parental notification.](#)
130 [§ 22.1-253.13:7. Standard 7. School board policies.](#)
131 [8VAC20-720-160. Instructional materials.](#)
132

SEXUALLY EXPLICIT INSTRUCTIONAL MATERIALS

Purpose

This policy establishes clear procedures for (i) the identification of instructional materials with sexually explicit content, (ii) parental notifications of any instructional materials with sexually explicit content, (iii) parental review of instructional materials with sexually explicit content, and (iv) the provision in a non-punitive manner of alternative instructional materials that do not include sexually explicit content for any student whose parent so requests.

Definitions

“Instructional material” and “instructional materials” mean any content used by one or more students for an educational purpose in connection with [BLANK] Public Schools regardless of (a) its format, whether printed, representational, audiovisual, electronic, or digital (such as materials, social media content, and software applications accessible through the internet), or (b) the time, place and manner in which the content is used. Library materials are considered instructional materials when used (a) for completion of an assignment from [BLANK] Public Schools, or (b) as part of an academic or extracurricular education program conducted by [BLANK] Public Schools.¹ They include any division, school, and/or classroom purchased or created assessments. They do not include standardized national or state assessments, such as ACT, SAT, NAEP (National Assessment of Educational Progress), AP (Advanced Placement) or SOL (Standards of Learning) exams.

“Parent” or “parents” means any parent, guardian, legal custodian, or other person having control or charge of a child.

“Sexually explicit content,” as defined by Va. Code § 2.2-2827, means (a) any description of or (b) any picture, photograph, drawing, motion picture film, digital image or similar visual representation depicting sexual bestiality, a lewd exhibition of nudity, as defined in this policy, sexual excitement, sexual conduct or sadomasochistic abuse, as defined in this policy, coprophilia, urophilia, or fetishism. Instructional materials shall not be designated as sexually explicit based solely on the sexual orientation of the characters therein.

Sexually Explicit Instructional Materials

[BLANK] School Board ensures that at least thirty (30) days prior to the use of any instructional materials with sexually explicit content, written notice is provided to

FOOTNOTES ARE FOR REFERENCE ONLY AND SHOULD BE REMOVED FROM FINAL POLICY.

¹ Nothing in this policy shall be (i) construed to permit the censoring of books in any public elementary or secondary school or (ii) utilized as a rationale or basis for the removal of books from any public elementary or secondary school.

parents that (i) specifically identifies the instructional materials with sexually explicit content, (ii) informs parents of their right to review such instructional materials, and (iii) informs parents of their right to have their child use, in a non-punitive manner, alternative, instructional materials that do not include sexually explicit content.

The Superintendent is responsible for creating, implementing, and periodically updating procedures for implementing this policy. Those procedures will include

- a process for identifying instructional materials, including supplementary materials, with sexually explicit content;
- a process for identifying, prior to the start of each school year, any instructional material that includes sexually explicit content that may be used during the upcoming school year;
- a process by which principals will provide written notice² to parents at least 30 days prior to the use of any instructional materials with sexually explicit content, that (a) specifically identifies the instructional materials with sexually explicit content, (b) informs parents of their right to review such instructional materials, and (c) informs parents of their right to have their child use, upon request, in a non-punitive manner, alternative instructional materials that do not include sexually explicit content;
- a process by which parents may change their decision with respect to the use of alternative instructional materials by providing written notice;
- a process for maintaining a current list of instructional materials with sexually explicit content by grade and subject matter on the division's website; and
- a process for online access for parental review of instructional materials that include sexually explicit content unless such review is not technically feasible or is prohibited by copyright protection. The process shall include provisions requiring schools to have instructional materials including sexually explicit content available for review by parents.

Adopted:

Legal Ref.: 20 U.S.C. § 1232h.

34 CFR Part 9

Code of Virginia, 1950, as amended, §§ 2.2-2827, 18.2-390, 22.1-1, 22.1-16.8.

² The superintendent's procedures should specify how the written notice will be provided, for example, by syllabi, learning management systems, U.S. mail, e-mail, in person at a parent-teacher meeting, or other means.

8 VAC 20-720-160.

Cross Ref.:	IGAH	Family Life Education
	IGBC	Parent and Family Engagement
	IIAA	Textbook Selection, Adoption, and Purchase
	IIAB	Supplementary Materials Selection and Adoption
	IIBD	School Libraries/Media Centers
	IIBEA/GAB	Acceptable Computer System Use
	INB	Teaching About Controversial Issues
	JOB	Administration of Surveys and Questionnaires
	KLB	Public Complaints About Learning Resources



Title: Instructional Materials Regulation

Code: IIA-R

Book: WJCC Policy Manual

Section I: Instruction

Williamsburg-James City County Schools will

- identify all instructional materials with sexually explicit content as defined in WJCC IIA Instructional Materials
- ensure parental notification of any instructional materials with sexually explicit content
- permit parents to review instructional materials, and
- in the case of instructional materials that contain sexually explicit content, provide a teacher selected alternative instructional material that does not include sexually explicit content, when a parent or guardian has completed the request process.

Parents/guardians who wish to review instructional materials, opt their child out of the use of instructional materials with sexually explicit content, or rescind their decision to opt out of the use of instructional materials with sexually explicit content, will complete and submit the *Review Request for Instructional Materials* form to the building principal.

Identification of Instructional Materials with Sexually Explicit Content

- WJCC Schools shall establish a process for identifying instructional materials with sexually explicit content.
- Prior to the start of the academic year, schools shall identify the specific instructional materials that include sexually explicit content which may be used during the upcoming school year. When determining whether instructional materials contain sexually explicit content, teachers, principals, and division staff should consider student age and maturity, and whether a parent might reasonably consider the instructional content harmful to their child.
- "Sexually explicit content" as defined by Va. Code 2.2-2827, means (a) any description of or (b) any picture, photograph, drawing, motion picture film, digital image or similar visual representation depicting sexual bestiality, a lewd exhibition of nudity, as defined in policy IIA, sexual excitement, sexual conduct or sadomasochistic abuse, as defined in policy IIA, coprophilia, urophilia, or fetishism. Instructional materials shall not be designated as sexually explicit based solely on the sexual orientation of the characters therein.
- "Parent" or "parents" means any parent, guardian, legal custodian, or other person having control or charge of a child.
- "Instructional material" and "instructional materials" mean any content used by one or more students for an educational purpose in connection with WJCC Public Schools regardless of (a) its format, whether printed, representational, audiovisual, electronic, or digital (such as materials, social media content, and software applications accessible through the internet), or (b) the time, place and manner in which the content is used. Library materials are considered instructional materials when used (a) for completion of an assignment from WJCC Public Schools, or (b) as part of an academic or extracurricular education program conducted by WJCC Public Schools. They include any division, school, and/or classroom purchased or created

assessments. They do not include standardized national or state assessments, such as ACT, SAT, NAEP (National Assessment of Educational Progress), AP (Advanced Placement) or SOL (Standards of Learning) exams.

Notice to Parents

- At least thirty (30) days prior to the use of any instructional materials with sexually explicit content, principals shall provide written notice to parents that (i) specifically identifies the instructional materials with sexually explicit content, (ii) informs parents of their right to review such instructional materials, and (iii) informs parents of their right to have their child use, in a non-punitive manner, alternative, instructional materials that do not include sexually explicit content.
- Such notice should be provided in writing to parents by U.S. mail, e-mail, and/or in person at a parent-teacher meeting.

Parental Right to Review Instructional Materials and Right to Request Alternative Instructional Materials in the case of Instructional Materials with Sexually Explicit Content

- WJCC Schools shall maintain a current list of instructional materials with sexually explicit content by grade and subject on the division and schools' public website.
- Principals shall provide online access for parental review of instructional materials, unless not technically feasible or prohibited by copyright protection. Schools shall also have available at the school for parent review all instructional materials.
- Schools shall defer to parents to determine whether the use of sexually explicit content in instructional materials, if any, is appropriate for their child.
- Upon a parent's request as documented in Section 2 of the *Parental Review of Instructional Materials* form, schools shall provide, in a manner that is not punitive, alternative instructional materials for the student that do not include sexually explicit content.
- Parents may change their decision with respect to the use of alternative instructional materials by completing Section 3 of the *Request Review for Instructional Materials* form.

Effective Date: